

1 Q. Why was that?

2 A. Our department policy is for vehicle
3 collisions, if a party causes injury to someone else
4 and they are at fault, we cite them.

5 If the person is at fault and they only cause
6 injury to themselves, we don't cite them.

7 Q. You didn't cite Mr. Rosario because it was
8 your determination, based upon the investigation, he
9 caused injuries to himself?

10 A. Correct.

11 MR. ROSARIO: Objection. He didn't run the
12 investigation; he collected the information to report
13 that.

14 THE COURT: It is overruled.

15 MS. NAVARATNASINGHAM: Q. And my client was
16 not cited, correct?

17 A. Correct.

18 Q. Why is that?

19 A. I didn't find any vehicle code violation.

20 Q. As far as the police report, do you recall if
21 you ever received any inquiries from Mr. Rosario to
22 make any changes to the report?

23 A. I don't believe so.

24 Q. If such an query had been made, that would be
25 noted, correct?

26 A. Correct.

27 Q. According to your report, Mr. Rosario was
28 examined at the scene by an ambulance personnel. Is

1 A. I only was able to watch my body cam.

2 Q. Correct. So for this one -- this was filed,
3 I believe, on November 15th of 2024 -- on the
4 supplemental testimony regarding the incident.

5 MS. NAVARATNASINGHAM: Your Honor, for the
6 record, I do want to just state, as far as this
7 document goes, this is not -- we subpoenaed the police
8 records for the incident and this is not anything that
9 we received as part of the subpoena.

10 I do also want to note for the record the
11 incident occurred February 4, 2021.

12 It appears that this supplement was submitted
13 by Mr. Rosario on November 13, 2024, over three years
14 after the subject incident.

15 So I would say this is unreliable and lacks
16 foundation.

17 MR. ROSARIO: It is still part of the police
18 report. It has got the stamps on it, it says: SFPD
19 crime information services.

20 It is part of the report. We just clarified
21 "people are" and the Defense just asked: People are
22 supposed to add a supplement.

23 There is a supplement now.

24 THE COURT: It is -- sir, it may very well be
25 part of the original police report; however, number
26 one, it is beyond the scope of the original -- the
27 cross-examination in this matter.

28 She did not, as far as I recall, address

1 report -- and I guess in certain cases -- for example,
2 this Court just brought it to your attention -- what
3 happens then, when you have been aware that there is a
4 new supplement that has been added?

5 What do you do?

6 A. For a supplemental, I don't receive any
7 notification that you made a supplemental.

8 This would just be forwarded to the traffic
9 division. They would review it.

10 But I was never made aware of it so I don't
11 have any knowledge of this, sir, or anything.

12 Q. The traffic division is effectively like the
13 final word on these things. They could update your
14 report, correct?

15 A. They wouldn't update my report. They could
16 continue the investigation if they deem it necessary.

17 Q. All right. Here is a question that was asked
18 to you during your deposition.

19 THE COURT: No. This is beyond the scope of
20 the cross-examine.

21 MR. ROSARIO: It is in response to her. It
22 is a redirect.

23 MR. ROSARIO: Q. Are scooters traveling the
24 bike lane --

25 MS. NAVARATNASINGHAM: I object to him
26 reading from the deposition transcript when the
27 witness is here.

28 MR. ROSARIO: We are validating --